IFIC Surety

HARCO NATIONAL INSURANCE COMPANY
INTERNATIONAL FIDELITY INSURANCE COMPANY
U.S. CUSTOMS CONTINUOUS BOND (TYPE 8) APPLICATION

☐ New Bond Application ☐ Termination and Replacement Requested Bond Effective Date: _____ Application Date: _____ Bond Amount: $_____

PRINCIPAL SECTION

Select Principal ID Type: (Check one box.) ☐ Tax ID Number (EI) ☐ CBP Number (ANI) ☐ Social Security Number (34) Principal ID Number: _____ Is CF-5106 on file? ☐ Yes ☐ No

PRINCIPAL MAILING ADDRESS

Principal Name				If applicable, select type: ☐ Division ☐ AKA ☐ DBA	
Address 1				Name:	
Address 2				Main Phone Ext	Fax
City	State /Province	Zip Code	Country	E-Mail	

Is Mailing address the same as the Physical address? ☐ Yes ☐ No

PRINCIPAL PHYSICAL ADDRESS

Address 1				Main Phone Ext	
Address 2				Fax	
City	State /Province	Zip Code	Country		

OFFICER OF THE COMPANY AUTHORIZING BOND APPLICATION		PRIMARY BUSINESS CONTACT	
Name	Title	Name	Title
State of Incorporation		Email	Phone Ext

TYPE OF COMPANY

☐ Corporation ☐ Sole Proprietorship ☐ LLC ☐ Individual ☐ US Gov't ☐ US State/ Local ☐ Foreign Corp ☐ Other: _____

Partnership: ☐ General Partnership (Provide the names and addresses of all partners). Attach a separate page if required. _____
☐ Limited Partnership (Provide a copy of the Partnership Agreement)

TYPE OF BUSINESS

☐ Importer ☐ Warehousemen ☐ Trucking Common Carrier ☐ Air Carrier ☐ Ocean Common Carrier ☐ Other: _____

CO-PRINCIPAL SECTION (IF APPLICABLE)

Select Co-Principal ID Type: (Check one box.) ☐ Tax ID Number (EI) ☐ CBP Number (ANI) ☐ Social Security Number (34) Co-Principal ID Number: _____ Is CF-5106 on file? ☐ Yes ☐ No

CO-PRINCIPAL MAILING ADDRESS

Co-Principal Name				If applicable, select type: ☐ Division ☐ AKA ☐ DBA	
Address 1				Name:	
Address 2				Main Phone Ext	Fax
City	State /Province	Zip Code	Country	E Mail	

Is Mailing address the same as the Physical address? ☐ Yes ☐ No

CO-PRINCIPAL PHYSICAL ADDRESS

Address 1				Main Phone Ext	
Address 2				Fax	
City	State /Province	Zip Code	Country		

State of Incorporation	OFFICER OF THE COMPANY AUTHORIZING BOND APPLICATION	
	Name	Title

Add Co-Principal | Delete Co-Principal

TRADENAMES & UNINCORPORATED DIVISIONS SECTION (IF APPLICABLE)

Select Bond User ID Type: (Check one box.) ☐ Tax ID Number (EI) ☐ CBP Number (ANI) ☐ Social Security Number (34) Bond User ID Number: _____ Is CF-5106 on file? ☐ Yes ☐ No

BOND USER MAILING ADDRESS

Bond User ID Name				If applicable, select type: ☐ Division ☐ AKA ☐ DBA	
Address 1				Name:	
Address 2				Main Phone Ext	Fax
City	State /Province	Zip Code	Country	E-Mail	

Is Mailing address the same as the Physical address? ☐ Yes ☐ No

BOND USER PHYSICAL ADDRESS

Address 1				Main Phone Ext	
Address 2				Fax	
City	State /Province	Zip Code	Country		

Add Bond User | Delete Bond User

Principal Name _____ Bond Amount $ _____

Bond Type Required. Select only ONE (1) Activity Code Type Below.

ACTIVITY CODE 1 IMPORTER OR BROKER 19 CFR 113.62

☐ General Goods ☐ TIB ☐ Warehouse ☐ Auto ☐ AD/CVD ☐ FDA ☐ Chapter 98 ☐ GSP/CBI

HTS = HARMONIZED TARIFF SCHEDULE NUMBER (TOP 2 BASED ON DOLLAR VOLUME) - ONLY APPLICABLE TO TYPE 1 IMPORTER OR BROKER BOND

HTS Product Classification	Country Origin	Product Description

Add HTS | Delete HTS

PROJECTED IMPORT DOLLAR VOLUME - ONLY APPLICABLE TO TYPE 1 IMPORTER OR BROKER BOND

Bond Amount Calculator Type '1' CFR 113.62	PREVIOUS TWELVE (12) MONTHS				ESTIMATED NEXT TWELVE (12) MONTHS			
	FOB VALUE	EST. DUTIES/TAXES/ FEES	IR TAXES	NO. OF CUSTOMS ENTRIES	FOB VALUE	EST. DUTIES/TAXES/ FEES	IR TAXES	NO. OF CUSTOMS ENTRIES
Estimated Dollar Import Volume	$	$	$		$	$	$	

ACTIVITY CODE 1A DRAWBACK 19 CFR 113.65

Check Drawback Type: ☐ Accelerated Drawback ☐ Entry Summary Drawback

The estimated dollar amount applicable to drawback recovery for the next 12 months will be: $ _____

ACTIVITY CODE 2 CUSTODIAN OF BONDED MERCHANDISE 19 CFR 113.63

☐ Bonded Carrier ☐ Bonded Warehouse ☐ Container Freight Station ☐ Bonded Cartmen ☐ Freight Forwarder ☐ Lightermen

SCAC Code (4 DIGITS): _____

Customs Approved Port: _____

Has the principal ever paid Customs a $50 Bonded Carrier Application Fee? ☐ Yes ☐ No

Parties subject to the fee include carriers, cartmen, and lightermen.

If Yes, provide proof of payment with this application.

ACTIVITY CODE 3 INT'L CARRIER 19 CFR 113.64 /ACTIVITY CODE 3A INSTRUMENTS OF INT'L TRAFFIC 19 CFR 113.66

Check both boxes if both 3 & 3A are applicable:

☐ International Carrier (TYPE 3 CFR 113.64) $ _____

☐ Instruments of International Traffic (TYPE 3A CFR 113.66) $ _____

If the Principal is an airline, provide the number of seats including crew seats on the largest aircraft in the fleet: _____

ACTIVITY CODE 4 FOREIGN TRADE ZONE CFR 113.73

☐ Foreign Trade Zone

ACTIVITY CODE 11 AIRPORT SECURITY BOND

☐ Airport Security Bond ☐ PART 113 APP A TERM From ☐ To ☐

LIST AIRPORTS : _____

OTHER BONDS OR RIDERS

☐ Activity Code 5 Public Gauger

☐ Activity Code 15 Intellectual Property Rights

☐ Activity Code 16 Importer Security Filing (ISF) 113 APP D

☐ Activity Code 17 Marine Terminal Operator

☐ Activity Code19 User Fee Utility Bond

☐ Reconciliation Rider

☐ Virgin Islands Rider

☐ OTHER _____

CUSTOMS BOND QUESTIONS

1. Is this bond subject to Antidumping or Countervailing duty? ☐ Yes ☐ No
2. Is this an additional bond requested by US Customs? ☐ Yes ☐ No
3. Has your company received U.S. Customs "Notice of Penalty or Liquidated Damages" demands? ☐ Yes ☐ No
4. Is your company CTPAT certified? ☐ Yes ☐ No
5. How does your company file Importer Security Filing (ISF)? ☐ Self File ☐ CHB ☐ Freight Forwarder ☐ N/A
6. How does your company pay U.S. Customs duty? ☐ Company check ☐ Company ACH ☐ CHB ACH ☐ Periodic Monthly Statement ☐ N/A

GENERAL QUESTIONS

1. Does the Applicant have any other Surety bonds in force? ☐ Yes ☐ No
2. Has another surety company declined to write this or any previous bond? ☐ Yes ☐ No
3. Has there ever been a claim or legal action against any bond executed on your behalf? ☐ Yes ☐ No
4. Have you or any of your companies declared bankruptcy or become insolvent? ☐ Yes ☐ No
5. Have you ever been convicted of a felony? ☐ Yes ☐ No

If you answered "yes" to any questions above, please explain below: _____

Principal Name _____

ACKNOWLEDGEMENT

I certify that the foregoing information is true, accurate and based on the best information available as of the date of this application. Should the Applicant (herein referred to as "Principal") discover any inaccuracies in the above information, the Principal understands that it is its duty to advise the Surety immediately. The Principal understands that this application does not constitute an agreement by the Surety to issue bonds or any bond. The Principal furthermore understands that additional information may be required as part of the underwriting process from the Principal, its Customs Broker and/or Insurance Agent. The Principal understands that the electronic submission of a continuous customs bond to U.S. Customs and Border Protection (hereinafter referred to as "CBP") is subject to many variables and that the success of any Customs Bond application is in no way guaranteed. The Principal hereby waives any claim that a delay in processing an electronic bond submission or communication with CBP are the fault of the Surety. The Principal furthermore understands that CBP may periodically change its policies and procedures, and hereby waives any claim that failure to comply with any and all CBP policies and procedures is the fault of the Surety. The Principal hereby waives any claim that any negative determination with respect to this application by CBP is the fault of the Surety.

The Principal understands that the execution of this application by a representative of the Principal permits the Surety to submit electronically the required data elements to obtain CBP's approval of a continuous bond for the Principal as stipulated within Federal Register Doc #: 2014-28146, Vol 79, No. 229 pages: 70881-70886 dated November 28, 2014: Announcement of eBond Test. The term "eBond" means an electronic bond contract between principal(s) and surety(ies), with CBP as third-party beneficiary, that is comprised of data elements required by the eBond system which are transmitted by a surety or surety agent to CBP under the eBond process. Pursuant to FRN 2014-28146 and 19 U.S.C 1623 (d), an eBond has the same force and effect and is binding upon the principal(s) and surety(ies) thereto as if such eBond had been manually executed, signed and filed in full compliance with 19 CFR part 113.

A continuous eBond remains in force for one year beginning with the effective date and for each succeeding annual period, or until terminated. A continuous eBond constitutes a separate bond for each period in the amount(s) of the eBond for liabilities that accrue in each annual period. The intention to terminate a continuous eBond must be conveyed within the annual period and in the manner described in the FRN eBond Test notice.

The Principal acknowledges and agrees that the format of the bond applied for herein is electronic, and that the terms and conditions of such bonds are set forth in Federal Register Doc #: 2014-28146, Vol 79, No. 229 pages: 70881-70886 dated November 28, 2014: Announcement of eBond Test. This Application and Agreement is governed by the laws and regulations set forth in U.S. Code: Title 19 Customs Duties and any and all other applicable laws and regulations.

The Principal agrees and acknowledges that an electronic bond is the legal and substantive equivalent of a written surety bond for all purposes, including but not limited to the obligations of the indemnity agreement contained herein. The Principal specifically waives any and all objections that the electronic format of the bond is deficient or unenforceable as a matter of law; and /or that the Surety has no liability to CBP thereunder and/or that the Surety acted as a "volunteer" in making payment of any claim by CBP with respect to any such bond issued on behalf of the Principal.

INDEMNITY AGREEMENT

In consideration of the issuance of the Bond(s) herein applied for, or any bond(s) in substitution for or in succession of the said Bond(s), or any increase or extension of time of the said Bond(s) or any other Bond(s) or undertaking by the Surety on behalf of the Principal, Co-Principal, Unincorporated Divisions, and/or Trade Names (hereinafter collectively referred to as, "Principal") authorized by U.S. Customs and Border Protection (hereinafter referred to as "CBP"), whether issued or undertaken prior to or after the date hereof, hereinafter individually or collectively referred to as Bond(s), the undersigned hereby agrees:

1. That the Principal shall indemnify and keep indemnified the Surety against any and all liability for losses and expenses of whatsoever kind or nature, including, but not limited to losses paid to the U.S. Customs and Border Protection, Department of Homeland Security, Department of Treasury, the fees and disbursements of counsel, interest, costs of investigators, accountants, consultants, debt collection agents and other expenses as deemed necessary by Surety which the Surety may sustain or incur

i. by reason of having executed or procured the execution of the Bond(s); or,

ii. by reason of the failure of the undersigned to perform or comply with the covenants and conditions of 19 CFR U.S. Customs Regulations Parts 0 - 399, FRN 2014-28146 dated November 28, 2014; and/ or 19 U.S.C 1623; and/or this Agreement or any other applicable legal obligation; or

iii. in enforcing any of the covenants and conditions of this Agreement.

The Principal will place the Surety in funds to meet all of its liability as aforesaid promptly on request and before the Surety may be required to make any payment hereunder. Copies of any voucher, sworn itemized statement or other evidence of payment of any of the foregoing by the Surety shall be prima facie evidence of liability of the undersigned under this Agreement.

2. That the Surety shall have the exclusive right for itself and for the Principal to take charge of all matters arising under said Bond(s) and decide whether or not it is liable thereunder and determine the amount of its liability in case it decides that it is liable. It may settle or compromise (1) any U.S. Customs and Border Protection supplemental duty bill, (2) claim proceedings under a Notice of Penalty or Liquidated Damages Incurred and Demand for Payment - CF 5955a; (3) claim proceedings under 19 U.S.C 1592; and (4) any claims or suits of any nature. The Surety may take such other action in connection with any claim matter arising under said Bond(s) as it may deem advisable. Any such decisions, determination, settlement, defense, compromise or other action of the Surety in connection with any claim matter arising under said Bond(s) shall be final and conclusive and unconditionally binding upon the Principal.

3. That the Principal, and the heirs, legal representatives, successors and assigns of the Principal, and all present and future subsidiaries and affiliates of the Principal, shall be and hereby are jointly and severally bound by the foregoing provisions of this Agreement, and that the liability of each Principal hereunder and of the heirs, legal representatives, successors and assigns of such Principal hereunder shall not be dependent upon the proper execution of this Agreement, any bond or any other instrument herein referred to by any other Principal, and that if the Surety procures any co-surety on said bond, this Agreement shall be deemed extended to and for the benefit of said co-surety.

4. The undersigned agrees that this document and any and all bonds issued by the Surety will be subject to the terms of the Uniform Electronic Transactions Act ("UETA") and the Electronic Signatures in Global and National Commerce Act ("E-Sign"), 15 U.S.C 7001 et seq., and any and all substantially similar federal or state legislation designed to regulate electronic commerce.

5. The Principal waives any defense that this instrument was executed subsequent to the date of any Bond(s), admitting and covenanting that such Bond(s) were executed pursuant to the request of the Principal, and in reliance upon the Principal's promise to execute this document. This Indemnity Agreement is not intended to waive, limit or restrict any other rights or remedies which the Surety may have as allowed by statutory or common law.

Signature:

Principal (Company Name)	Authorized Officer of the Company	Print (Type) Name / Title	Signature	Date
Co-Principal (Company Name)	Authorized Officer of the Company	Print (Type) Name / Title	Signature	Date

INSURANCE AGENT INFORMATION				
Name				REP Name
Address 1				Main Phone Ext
Address 2				Fax
City	State /Province	Zip Code	Country	Email
CUSTOMS BROKER INFORMATION				
CHB Name				Contact Name

Principal Name _____ Bond Amount $ _____

SECONDARY NOTIFY PARTY					
Schedule D Code				Filer Code	Office Code
Address 1				Main Phone Ext	
Address 2				Fax	
City	State /Province	Zip Code	Country	Email	

Add Secondary Notify Party | Delete Secondary Notify Party